

Court No. - 21

Case :- WRIT - C No. - 9043 of 2023

Petitioner :- Rupvanti Devi

Respondent :- Purvanchal Electricity Distribution Nigam Limited And 3 Others

Counsel for Petitioner :- Dheeraj Kumar Singh

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The petitioner has challenged the recovery citation dated 30.09.2022/18.10.2022 issued by respondent no. 3/4. The challenge is to the electricity bill issued by the respondents. The challenge is on the ground that the connection was not commercial but the respondents have raised the demand by treating it to be a commercial connection.

The dispute can be raised by the petitioner under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

Accordingly, we permit the petitioner to file objection against the impugned bill within two weeks from today and in which event, it will be decided by the respondent no. 3 by a speaking order within next four weeks and until decision is taken, no coercive action shall be taken in pursuance of the impugned recovery citation.

The writ petition is **disposed of** accordingly.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 21.3.2023

Rama Kant